

9. S-PR-0014125 In Re the Conservatorship of Duerst, Anthony

Appearance is required for continued hearing on petition for appointment of temporary limited conservator of the person.

Missing 5 court days' service of notice of hearing with copy of the temporary petition to sibling Brendan Duerst; missing C.R.C. 7.52 declaration of efforts to locate and serve Brendan.

Clarification is needed: general petition prays for petitioner to be appointed limited conservator of the person (¶ 1a), but for Anthony to be appointed his own conservator of the estate (¶ 1b); limited conservatorship powers are requested as to the estate (¶ 1i; note, however, that Attachment 1i is missing); there are no allegations concerning the estate in ¶ 3e; grounds re conservatorship of the estate are alleged (¶ 5c(2)); and information concerning conservatorship of the estate is given in the confidential supplemental information (form GC-312, ¶ 4). Temporary petition alleges no estate powers are requested.

Missing all grounds for temporary appointment (temporary petition ¶ 3).

Missing all information concerning alternative to conservatorship (form GC-312, ¶ 6).

Although not yet before the court, additional calendar notes for the general petition, currently set for hearing June 12, 2026: missing required allegation of due diligence in determining relatives (¶ 3f); missing address for sibling Brendan Duerst (¶ 11a(11) and / or C.R.C. 7.52 declaration of efforts to locate Brendan; ¶ 1e / Attachment 1e does not present a sufficient basis for relief (powers re medical decisions, personal affairs, and the like are not governed by either Prob.C. § 1873 or 1901); ¶ 1f / Attachment 1f does not present a sufficient basis for relief as duplicative of requested limited conservatorship powers (see ¶¶ 1h–1j); missing Attachment 1h (see ¶ 1h); Attachment 1j includes both requested conservator powers and conservee limitations, but with conflicting requests (as filed, conservee and conservator would share powers re confidential records, social / sexual contacts, and marriage / RDP); missing Attachment 1i (see ¶ 1i); missing attachment GC-335 (see ¶ 1k); medical capacity declaration was improperly attached to petition (when filed as attachment, the clerk cannot file it as a confidential court record).

Counsel for petitioner requests that this matter be continued to June 12, 2026, 10:00 a.m., in Department 40, to be heard with the general conservatorship petition.